

COURT OF COMMON PLEAS OF PHILADELPHIA COUNTY

DOCKET



Docket Number: CP-51-CR-0000121-2026

CRIMINAL DOCKET

Court Case

Commonwealth of Pennsylvania

v.

Benjamin McClain

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CASE INFORMATION

<u>Judge Assigned:</u> O'Keefe, J. Scott	<u>Date Filed:</u> 01/09/2026	<u>Initiation Date:</u> 01/09/2026
<u>OTN:</u> U 344455-6	<u>LOTN:</u>	<u>Originating Docket No:</u> MC-51-CR-0019818-2025
<u>Initial Issuing Authority:</u> Marsha H. Neifield	<u>Final Issuing Authority:</u>	
<u>Arresting Agency:</u> Philadelphia Pd	<u>Arresting Officer:</u> Martin, Earl S.	
<u>Complaint/Citation No.:</u> 2415022045-0019818	<u>Incident Number:</u> 2415022045	
<u>County:</u> Philadelphia	<u>Township:</u> Philadelphia City	
<u>Case Local Number Type(s)</u>	<u>Case Local Number(s)</u>	
Originating Docket Number	MC-51-CR-0019818-2025	
District Control Number	2415022045	
Originating Document Number	2415022045-0019818	

RELATED CASES

<u>Related Docket No</u>	<u>Related Case Caption</u>	<u>Related Court</u>	<u>Association Reason</u>
Joined Codefendant Cases			
CP-51-CR-0001017-2025	Comm. v. Joyce, Aquinetta	CP-01-51-Crim	CO-DEF ASSOCIATED CASES
CP-51-CR-0006664-2025	Comm. v. Joyce, George	CP-01-51-Crim	CO-DEF ASSOCIATED CASES

STATUS INFORMATION

<u>Case Status:</u> Adjudicated	<u>Status Date</u>	<u>Processing Status</u>	<u>Arrest Date:</u> 10/23/2025
	04/23/2026	Awaiting PSI	
	04/23/2026	Awaiting Sentencing	
	04/23/2026	Awaiting Sentencing	
	01/22/2026	Awaiting Pre-Trial Conference	
	01/09/2026	Awaiting Filing of Information	

Complaint Date: 10/24/2025

CALENDAR EVENTS

<u>Case Calendar</u>	<u>Schedule</u>	<u>Start</u>	<u>Room</u>	<u>Judge Name</u>	<u>Schedule</u>
<u>Event Type</u>	<u>Start Date</u>	<u>Time</u>			<u>Status</u>
Formal Arraignment	01/29/2026	11:00 am	1104	Trial Commissioner Walter Vogler	Scheduled
Pre-Trial Conference	02/19/2026	9:00 am	907	Judge J. Scott O'Keefe	Scheduled
Pretrial Bring Back	03/11/2026	9:00 am	907	Judge J. Scott O'Keefe	Continued
Pretrial Bring Back	04/23/2026	9:00 am	907	Judge J. Scott O'Keefe	Scheduled
Sentencing	07/31/2026	9:00 am	907	Judge J. Scott O'Keefe	Scheduled

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CONFINEMENT INFORMATION

<u>Confinement</u> <u>Known As Of</u>	<u>Confinement</u> <u>Type</u>	<u>Destination</u> <u>Location</u>	<u>Confinement</u> <u>Reason</u>	<u>Still in</u> <u>Custody</u>
10/24/2025	County Correctional Facility	Phila Industrial Corr Center		Yes

DEFENDANT INFORMATION

Date Of Birth: 10/29/1992 City/State/Zip: Philadelphia, PA 19145

CASE PARTICIPANTS

<u>Participant Type</u>	<u>Name</u>
Defendant	McClain, Benjamin

BAIL INFORMATION

McClain, Benjamin

Nebbia Status: None

<u>Bail Action</u>	<u>Date</u>	<u>Bail Type</u>	<u>Originating Court</u>	<u>Percentage</u>	<u>Amount</u>
Denied	10/24/2025		Municipal Court		\$0.00

CHARGES

<u>Seq.</u>	<u>Orig Seq.</u>	<u>Grade</u>	<u>Statute</u>	<u>Statute Description</u>	<u>Offense Dt.</u>	<u>OTN</u>
1	1	F1	18 § 2502 §§ C	Murder Of The Third Degree	03/25/2024	U 344455-6
2	2	F1	18 § 903	Conspiracy - Murder Of The Third Degree	03/25/2024	U 344455-6
3	3	F1	18 § 6105 §§ A1	Possession Of Firearm Prohibited	03/25/2024	U 344455-6
4	4	F3	18 § 6106 §§ A1	Firearms Not To Be Carried W/O License	03/25/2024	U 344455-6
5	5	M1	18 § 6108	Carry Firearms Public In Phila	03/25/2024	U 344455-6
6	6	M1	18 § 907 §§ A	Poss Instrument Of Crime W/Int	03/25/2024	U 344455-6
7	7	M2	18 § 2705	Recklessly Endangering Another Person	03/25/2024	U 344455-6

DISPOSITION SENTENCING/PENALTIES

Disposition

<u>Case Event</u>	<u>Disposition Date</u>	<u>Final Disposition</u>
<u>Sequence/Description</u>	<u>Offense Disposition</u>	<u>Grade</u> <u>Section</u>
<u>Sentencing Judge</u>	<u>Sentence Date</u>	<u>Credit For Time Served</u>
<u>Sentence/Diversion Program Type</u>	<u>Incarceration/Diversionary Period</u>	<u>Start Date</u>
<u>Sentence Conditions</u>		

Lower Court Proceeding (generic)

Preliminary Hearing	01/08/2026	Not Final
1 / Murder Of The Third Degree	HP - Held for Court	F1 18 § 2502 §§ C
2 / Conspiracy - Murder Of The Third Degree	HP - Held for Court	F1 18 § 903
3 / Possession Of Firearm Prohibited	HP - Held for Court	F1 18 § 6105 §§ A1
4 / Firearms Not To Be Carried W/O License	HP - Held for Court	F3 18 § 6106 §§ A1
5 / Carry Firearms Public In Phila	HP - Held for Court	M1 18 § 6108

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DISPOSITION SENTENCING/PENALTIES

Disposition

Case Event

Sequence/Description

Sentencing Judge

Sentence/Diversion Program Type

Sentence Conditions

Disposition Date

Offense Disposition

Sentence Date

Incarceration/Diversionary Period

Final Disposition

Grade Section

Credit For Time Served

Start Date

6 / Poss Instrument Of Crime W/Int

HP - Held for Court

M1

18 § 907 §§ A

7 / Recklessly Endangering Another Person

HP - Held for Court

M2

18 § 2705

Proceed to Court

Defendant Was Not Present

Information Filed

02/03/2026

Not Final

1 / Murder Of The Third Degree

Proceed to Court

F1

18 § 2502 §§ C

2 / Conspiracy - Murder Of The Third Degree

Proceed to Court

F1

18 § 903

3 / Possession Of Firearm Prohibited

Proceed to Court

F1

18 § 6105 §§ A1

4 / Firearms Not To Be Carried W/O License

Proceed to Court

F3

18 § 6106 §§ A1

5 / Carry Firearms Public In Phila

Proceed to Court

M1

18 § 6108

6 / Poss Instrument Of Crime W/Int

Proceed to Court

M1

18 § 907 §§ A

7 / Recklessly Endangering Another Person

Proceed to Court

M2

18 § 2705

Guilty Plea - Non-Negotiated

Pretrial Bring Back

04/23/2026

Final Disposition

1 / Murder Of The Third Degree

Guilty Plea - Non-Negotiated

F1

18 § 2502 §§ C

2 / Conspiracy - Murder Of The Third Degree

Guilty Plea - Non-Negotiated

F1

18 § 903

3 / Possession Of Firearm Prohibited

Guilty Plea - Non-Negotiated

F1

18 § 6105 §§ A1

4 / Firearms Not To Be Carried W/O License

Nolle Prossed

F3

18 § 6106 §§ A1

5 / Carry Firearms Public In Phila

Nolle Prossed

M1

18 § 6108

6 / Poss Instrument Of Crime W/Int

Nolle Prossed

M1

18 § 907 §§ A

7 / Recklessly Endangering Another Person

Nolle Prossed

M2

18 § 2705

COMMONWEALTH INFORMATION

ATTORNEY INFORMATION

Name: Philadelphia County District Attorney's
Office
District Attorney

Name: George Setrag Yacoubian Jr.
Court Appointed

Supreme Court No:

Supreme Court No: 206576

Phone Number(s):

Rep. Status: Active

215-686-8000 (Phone)

Phone Number(s):

610-213-3452 (Phone)

Address:

610-213-3452 (Mobile)

3 South Penn Square
Philadelphia, PA 19107

Address:

1515 Market St Ste 1200
Philadelphia, PA 19102

Representing: McClain, Benjamin

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
1	01/09/2026		Court of Common Pleas - Philadelphia County
Held for Court			
4	01/22/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
5	01/22/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	02/03/2026		Krasner, Larry
Information Filed			
3	02/19/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
4	02/19/2026		O'Keefe, J. Scott
Defense Request For Continuance For Further Investigation			
1	03/11/2026		O'Keefe, J. Scott
Defense Request For Continuance For Further Investigation			
5	03/11/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			
1	03/17/2026		Court of Common Pleas - Philadelphia County
Appointment Notice			
1	04/23/2026		O'Keefe, J. Scott
Guilty Plea - Non-Negotiated			
2	04/23/2026		Court of Common Pleas - Philadelphia County
Order -- Trial Disposition			

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<u>Sequence Number</u>	<u>CP Filed Date</u>	<u>Document Date</u>	<u>Filed By</u>
5	04/23/2026		Court of Common Pleas - Philadelphia County
Hearing Notice			